The examination is being carried out on the **following application documents**

Description, Pages

1-193 as published

Claims, Numbers

1-15 filed in electronic form on 26-05-2021

Drawings, Sheets

1/81-81/81 as published

1 The amendment filed in electronic form on 26.05.2021 introduces subject-matter which extends beyond the content of the application as filed, contrary to **Article 123(2) EPC**.

1.1 Claim 1 has been amended (among others) by introducing features stemming from paragraph [0382]: "wherein the at least one gas delivery tube includes an inner textile layer and an outer textile layer, the inner textile layer being joined to the outer textile layer along at least a first edge of the gas delivery tube to form a tubular shape with a first seam" omitting the feature that the inner layer is configured to contact the patient, and the outer layer is configured to face away from the patient. This omission is considered as not justified intermediate generalisation.

1.2 For the features of present claim 12, no clear basis can be identified in the application as originally filed. According to the applicant, claim 12 stems from original claim 12, but currently said claim defines that "a width of the first seam is varied along a length of the at least one gas delivery tube", wherein original claim 12 defined that "a width of the joint is varied along a length of the at least one gas delivery tube".

1.3 The applicant is requested to indicate firm basis in the application as originally filed for the amended features (Rule 137(4) EPC) or amend the claims accordingly.

2 The application does not meet the requirements of Article 84 EPC, because claim 14 is not clear.

2.1 Said claim refers to "the first joint and the second joint", however claims 1 to 13 lack to define any joints. The intention was probably to refer to "the first seam and the second seam" as in the penultimate line of claim 14.

2.2 When amending the claim, the applicant is requested to indicate firm basis in the application as originally filed for the amended features (Rule 137(4) EPC).

3 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 WO 2008/011682 A1 (RESMED LTD [AU]; KWOK PHILIP RODNEY [AU] ET AL.) 31 January 2008 (2008-01-31)

D2 US 2017/333662 A1 (OVZINSKY GRANT MILTON [AU] ET AL) 23 November 2017 (2017-11-23)

D3 US 2012/325219 A1 (SMITH DAVID W [US]) 27 December 2012 (2012-12-27)

D4 US 2012/152255 A1 (BARLOW ADAM [AU] ET AL) 21 June 2012 (2012-06-21)

4 **The combination of the features of the independent claim 1 is neither known from, nor rendered obvious by, the available prior art.**

4.1 Document D1 is considered to be the prior art closest to the subject-matter of claim 1, said document disclosing (see especially Figs 1-1 to 1-16, 3-1, 13-1, 13-2, 13-5; paragraphs [00111,00112, 00120, 00121]) a patient interface comprising:
- a plenum chamber pressurisable to a therapeutic pressure of at least 6 cmH20 above ambient air pressure, said plenum chamber including a plenum chamber inlet port sized and structured to receive a flow of air at the therapeutic pressure for breathing by a patient,
- a seal-forming structure constructed and arranged to form a seal with a region of the patient's face surrounding an entrance to the patient's airways, said seal-forming structure having a hole therein such that the flow of air at said therapeutic pressure is delivered to at least an entrance to the patient's nares, the seal-forming structure constructed and arranged to maintain said therapeutic pressure in the plenum chamber throughout the patient's respiratory cycle in use;
- a positioning and stabilising structure to provide a force to hold the seal-forming structure in a therapeutically effective position on a head of a patient, the positioning and stabilising structure comprising at least one gas delivery tube to deliver the flow of air to the entrance of the patient's airways via the seal-forming structure, the at least one gas delivery tube being constructed and arranged to contact, in use, at least a region of the patient's head superior to an otobasion superior of the patient's head;

wherein the at least one gas delivery tube includes an inner textile layer and an outer textile layer,
wherein the inner textile layer has a substantially planar cross-sectional shape, wherein the outer textile layer has a pre-determined non-planar cross-sectional shape, and wherein the outer textile layer is resilient such that when subjected to external force the cross- sectional shape of the outer textile layer is altered, and when the external force is released the outer layer returns to the pre-determined non-planar cross-sectional shape.

4.2 The subject-matter of claim 1 therefore differs from this known patient interface in that the inner textile layer is joined to the outer textile layer along at least a first edge of the gas delivery tube to form a tubular shape with a first seam, wherein the first seam provides rigidity to the gas delivery tube.

4.3 The rigidity of the seam contributes to the overall rigidity and behaviour of the tube and allows that the tube forms a stable positioning and stabilising structure. The rigidity of the seam also contributes to the ability of the positioning and stabilising structure to apply the necessary force vectors to the seal forming structure for a comfortable, effective and stable seal. The seam is used to increase rigidity without adding additional parts or applying additional processes, which could have a detrimental effect on comfort and/or cost.

4.4 The available prior art represented by documents D1-D4 does not disclose or fairly suggest to use a seam for the above purposes.

5 The applicant is invited to file an amended set of claims overcoming the objections under Articles 123(2) and 84 EPC, paying attention to the following issues:

5.1 Any new claim 1 will have to be worded in the two-part form incorporating in its preamble the features disclosed in the closest prior art D1 (Rule 43(1)(b)EPC).

5.2 Reference signs should be used throughout the claims (Rule 43(7) EPC).

5.3 In order to be able to assess the question of inventive step, the applicant is asked to indicate in the response which technical problem is solved by the characterising features of the claim 1 compared to the closest prior art (Rule 42(1)(c) EPC).

5.4 The applicant should adapt the description to the claims on file and amend or delete any statements or expressions which cast doubt on the scope of protection (Guidelines, F-IV, 4.3). Failure to do so could lead to refusal of the application under Article 97(2) EPC in combination with Article 84 EPC.
When amending the description, the following should be considered:
- The technical field of the invention (Rule 42(1)(a) EPC; Guidelines F-II, 4.2)

must correspond to the amended set of claims;
- The summary of the invention (Rule 42(1)(c) EPC; Guidelines F-II.4.5) must correspond to the amended set of claims. Statements such as "The invention is set out in the appended set of claims" or "The invention is as defined in claim X" may be used instead of repeating the claims verbatim;
- Embodiments which are no longer covered by the claims (such as embodiments relating to method of medical treatment) must be deleted, unless they can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. If this is the case, such embodiments must be prominently marked as not being covered by the claimed subject matter (T 1808/06 and Guidelines F-IV, 4.3). General statements such as "the embodiments do not extend the scope of the invention beyond the claimed subject-matter" are not enough to comply with this requirement. General statements not explicitly stating which parts of the description are not covered must not be used. Merely changing the wording "embodiment" to "example", "aspect" or similar is not sufficient;
- The technical features of the independent claims may not be presented as optional in the description. Where they precede a feature of an independent claim, terms such as "for example", “may", “can", "exemplary", "optionally", "preferably" and the like must be removed.

5.5 The closest prior art documents should be indicated and discussed in the description (Rule 42(1)(b) EPC).